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CATHOLIC UNIVERSITY OF CENTRAL AFRICA (UCAC)

CATHOLIC UNIVERSITY INSTITUTE, NKOLBISSON-YAOUNDE

FACULTY OF SOCIAL SCIENCES

DEPARTMENT OF ECONOMICS AND MANAGEMENT

BEM 3

EXAMINATION FOR: COMMERCIAL LAW 1

03Hrs

NORMAL SESSION 2022

Instructor: Dr. NK KASPA

Instruction(s): Read and attempt the following in good English, order of setting and methodologically.

SUNJO, a Bamenda based palm oil supplier stroke a lucrative business deal with **BUMA**, a palm oil retailer at Marcher Mvog-Mbi Yaoundé. Following their agreement, **SUNJO** will be supplying a thousand ton monthly for five years. However, **SUNJO** carries with him a complementary card on which he bears the status of a trader.

Due to bad roads in the North West Region, **SUNJO** had been unable to supply BUMA for the past two getting to three months. **BUMA's** agents are now unable to neither satisfy clients at hand nor arrange new deals with prospective ones. **BUMA** is running out of patience, and though wealthy is uneducated. He is further confused due to the fact that, **SUNJO** is Clerk at the NW Regional Court of Appeal. He learns from a friend that YOU are a year three student at the UCAC, undertaking studies in the BEM programme and now solicit your advice on the following:

a. Whether SUNJO can be sued as 'trader' under the UAGCL. (3mks).
b. To know if there are other conditions which can render someone unable acquire the status of 'trader'. (5mks)
c. To be enlightened on procedure for registration of trade at the Personal Property Credit Registry. (5mks).
d. To be schooled on some of the obligations of a trader under the UAGCL. (3mks)
e. Rights and duties of the agents he is having. (3mks).

Good luck folks.....